

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The Spanish Agency for Data Protection became aware through two complaints filed, one by (...) on February 24, 2023, and another by (...) on March 9, 2023, as well as by information published in (...) on February 24, 2023, of certain facts that could violate data protection legislation.

On March 1, 2023, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation actions referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD) to investigate the GUARDIA CIVIL - TOLEDO COMMAND with NIF S4516004A (hereinafter, Toledo Command or Command) in relation to the following facts:

In the aforementioned complaints, it was claimed that the Toledo Command of the Civil Guard maintained an active personal data database outside of those declared by the General Directorate of the Civil Guard in its inventory of data processing activities.

According to the complaints, this personal data database, called TOLETUM, had been created (...), parallel to the official automated system, (...).

The complaints indicated that the TOLETUM processing database was a data file (...). According to the information provided to the AEPD, this database was prepared to house (...).

In these complaints, it was asserted that the personal data database was not listed in the inventory of data processing activities, so the processing of personal information it conducted could fall outside the provisions established in the regulations governing personal data protection and respect for the principles related to processing, in aspects such as purpose, retention period, consent for data transfer, rights of access and rectification, or the very security of the data contained therein.

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SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, which consisted of an on-site inspection at the Toledo Command of the Civil Guard, becoming aware of the following details:

“Date on which the claimed facts occurred: February 24, 2023.

(...)

INVESTIGATED ENTITIES

During the present actions, the following entities have been investigated:

D.G. OF THE CIVIL GUARD with NIF S2816003D located at C/ GUZMAN EL BUENO, 110 - 28003 MADRID (MADRID) and

TOLEDO COMMAND OF THE CIVIL GUARD OF TOLEDO with NIF S4516004A

(...)

RESULT OF THE INVESTIGATION ACTIONS

An inspection was carried out at the Toledo Command of the Civil Guard, with the following result:

POINT 1 The representatives of the Civil Guard made the following statements in response to the questions posed by the inspectors:

(...).

The importance of this is highlighted due to lives being at stake. In fact, unfortunately, there have been two deaths due to gender violence in the province of Toledo in recent months, of two women classified as victims.

Creation and modifications introduced in the TOLETUM database:

(...).

All of this with the ultimate goal of providing an effective solution to the coordination of the application of the security measures required for victims of gender violence. (...).

They also indicate that, given the usefulness of the tool created, the General Directorate of the Civil Guard will study the possibility of developing an official application (...).

With TOLETUM, processes were automated and the coordination, collaboration, and alignment of efforts of (...) were effectively improved, facilitating the control and supervision of their work by command and control structures.”

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(...), over time has introduced changes in the tools of the TOLETUM Management System, (...), as a result of this constant evolution, some aspects of the design and the information contained will not match according to the date; (...)

- On 01/27/2023, the XXXXXX had access to the VIOGEN Manager, although they did not have the necessary training for its use.

- On 02/06-07/2023, some Training Days were organized (...), where, in addition to formal training in the use of the tool, the transfer of part of the information began (...).

- On 02/13/2023, (...), the following was reported: “right now we are inputting (...), all of this in order for the affiliation not to appear.”

- On 02/22/2023, an improvement was introduced, such that, (...).

- On 03/13/2023, instructions were given to temporarily stop using the new management tools.

Treatment of data of victims and aggressors of gender violence and civil guards in the TOLETUM database:

“In TOLETUM, the names and surnames of the victims, aggressors, or agents of the Civil Guard do not appear. (...).

Therefore, solely with the information contained in TOLETUM, it is not possible to identify victims or aggressors by name and surname. For that, one would have to refer to applications such as XXXXXX or XXXX, in which the names and surnames, as well as other identification data of the same, are recorded. That is to say, exclusively the persons authorized by their functions in XXXX and XXXXXX can identify the victims and aggressors.

Similarly, for the identification by names and surnames of the agents of the Civil Guard, it is necessary to access other internal applications of this Armed Institute and therefore have authorization for it.

(...), it was considered that the TOLETUM tool as designed did not contain personal data, so no report was requested from the Data Protection Delegate, nor was a Risk Analysis conducted regarding the processing of the Data, nor was the General Directorate, Responsible for the Treatments, informed about the development and implementation of the tool, nor is it therefore recorded in the Treatment Activities Register of the Responsible.”

1. Data of victims and aggressors:

“(...) there was an initial trial period, from 01/27/2023 to 02/22/2023 during which there were indeed data of name, surname, and ID number of the victims and aggressors in TOLETUM. (...).

2. Data of civil guards:

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“Regarding the identification data of the civil guards, they were recorded in the DOCUMENTARY Manager from December 2022 to February 2023, (...).

Publication of the news

(...)

: “Until the news XXXXXXXXXXXXXXXX was published in February 2023, the Toledo Command was not aware that its actions could supposedly be contrary to Data Protection regulations. (...) and training has even been provided on its use.”

Audit of the Data Protection unit of the General Directorate of the Civil Guard:

“Once the news was published, the responsible parties of the Command requested an audit from the Data Protection unit of the General Directorate of the Civil Guard, offering their collaboration to clarify the facts. Following the visit of the Data Protection Delegate to the Command (...).

From the Toledo Command, training in Data Protection has been requested from the General Directorate and a thorough analysis of the TOLETUM tool has been requested with the aim of collaborating as much as possible and ensuring that such events do not happen again.”

Content of the TOLETUM database:

“TOLETUM is composed of XXXXXXXXXXXX basically:

(...).

It became operational in February 2022.

The identification data of all civil guards XXXXXXXXXXXX from December 2022 to February 2023.

(...).

It became operational in March 2022.

(...).

It became operational in February 2022.

(...).

It became operational in February 2023.

(...).

It became operational in February 2023.

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(...).

Technical characteristics of the TOLETUM database:

(...).

It has been entirely developed by personnel from the Toledo Command.

(...).

Access to the TOLETUM database and traceability of such accesses:

“To access the shared folders on the server, the user needs to have been granted the corresponding permissions XXXXXXXXXXXX, so that when a user enters the system, only the folders enabled in their profile are visible in their XXXXXXXXXXXX browser. Access to the shared folders is only authorized for users who need it for the functions they perform.

(...).

Other security measures of the TOLETUM database:

“Among other security measures, there are:

(...).

Data deletion in the TOLETUM database:

“There is no data deletion policy in TOLETUM as such. (...).

Conclusions of the report:

“The Toledo Command of the Civil Guard has created a database called TOLETUM, (...).

In TOLETUM, victims and aggressors of gender-based violence are recorded (...). Names, surnames, and ID numbers do not appear. To know these last details, it is necessary (...), which is also recorded in TOLETUM.

However, there was an initial trial period, from 01/27/2023 to 02/22/2023, during which, in addition to the XXXXXXXXXXXX, names, surnames, and ID numbers of the victims and aggressors were recorded

in TOLETUM. Until an undetermined date (in February/March 2023), it also included (...). Civil guards are recorded as XXXXXXXXXXXX, with no names or surnames appearing in TOLETUM VIOGEN. However, the names, surnames, and tax identification numbers of civil guards XXXXXXXXXXXX appeared from December 2022 until February 2023, when they were all replaced by XXXXXXXX.

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(...), they considered that the TOLETUM tool as designed did not contain personal data, so no report was requested from the Data Protection Delegate, nor was a Risk Analysis conducted regarding the processing of the Data, nor was the General Directorate of the Civil Guard, Responsible for the Treatments, informed about the development and implementation of the tool, and therefore it does not appear in the Responsible's Activity Register.

(...).

There is no data deletion policy in TOLETUM. (...).

Following the publication in the press, and after the visit of the Data Protection Delegate of the Civil Guard, the Command of (...).

THIRD: On February 27, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for:

- An alleged infringement of Article 11 of LO 7/2021, classified in Article 59 a) of LO 7/2021.
- An alleged infringement of Article 28 of LO 7/2021, classified in Article 59 f) of LO 7/2021.
- An alleged infringement of Article 37 of LO 7/2021, classified in Article 59 f) of LO 7/2021.

FOURTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the accused party submitted a written statement of allegations in which, in summary, stated the following:

1. (...):

The General Directorate of the Civil Guard has adopted measures to prevent the recurrence of the reported behaviors XXXXXXXXXXXX. This Executive Center considered that (...).

Subsequently, requests for the installation of the XXXXXXXX were received.

(...).

On October 2, 2023, the Technical Services Headquarters (dependent on the General Directorate of the Civil Guard) requested a report from the DPD of the General Directorate of the Civil Guard regarding the procedure for authorizing or not authorizing the requests and, if applicable, (...).

On October 3, 2023, a report was issued by the DPD of the Civil Guard. In which, in summary, the following is indicated:

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In accordance with the GDPR and the LOPDGDD, the data controller is the entity that determines the purposes and means of processing. In the case of police data, this would be the competent authority. It is the responsibility of the controller and no one else to implement the organizational procedures and the technological or non-technological means that must be used in the processing of personal data. The General Directorate of the Civil Guard, in compliance with Article 31.2 of the LOPDGDD and Article 21 of Organic Law 7/2021, has made the Inventory of Processing Activities electronically accessible, which lists all the data processing activities declared by the Institution, specifying the

controller, the legal basis, etc.

The Ministry of the Interior, through Order 424/2019, establishes the principles that must govern the processing of personal data in the various units of the Department (including the General Directorate of the Civil Guard).

(...).

The following steps are described to be followed in the case that any unit, body, dependency, etc., considers it necessary to use other processing means:

1. Identify the processing or processes that contain personal data that you wish to process, for which you must refer to the Inventory of Processing Activities of the General Directorate of the Civil Guard.
2. Prepare a document containing the following information (...).
3. Send this document to the data controllers requesting authorization, with a copy to the DPO, without making a request to the IT Service.
4. Refrain from launching any management tool until written authorization is received from the Data Controller, which will establish the conditions of use.
5. The Data Controller will inform the DPO of the authorizations granted.

The DPO's report recalls the broad concept of personal data developed by the Article 29 Working Party in its Opinion 4/2007. It further states:

"Therefore, one must avoid the error of considering that personal data is only processed when the name or identity document of the person appears, understanding it as indicated in the previous section in a broad sense of the term, and in case of doubt, raising a query to this Data Protection Officer."

3. (...):

The written allegations contain the content of this decision:

"Among the competencies assigned to the Data Protection Officer by Regulation (EU) 2016/679, Organic Laws 3/2018 and 7/2021 is the supervision of compliance with said regulations and the advice for compliance with the current legislation regarding Personal Data Protection.

In line with the above, a report has been requested from the DPO regarding the installation and use of XXXXXXXXXXXX on official computers, the content of which is reproduced below.

Once the indicated regulations and report have been analyzed, this Headquarters establishes the procedure to be followed when a request for installation and authorization for the use of XXXXXXXXXXXX is received. This entails that prior to its authorization, it must be ensured that all requirements imposed by the legislative framework regulating Personal Data Protection are met.

Therefore, the procedure will observe the following points:

(...).

This is communicated for knowledge and the indicated effects."

The written allegations to the initiation agreement highlight that requests for the installation of XXXXXX are responded to with a document detailing said procedure, as well as the DPO's report. The installation of XXXXXXXXXXXX does not proceed until communication is received by the IT Service.

This document concludes by emphasizing that, even accepting the facts reported by the Inspectors in their report, the General Directorate of the Civil Guard has adopted the compliance measures proposed by the DPO. It also highlights the intention of the General Directorate of the Civil Guard to adopt all necessary measures, procedures, and instructions to ensure that the processing of personal data carried out strictly complies with the provisions of the regulations.

FIFTH:

1. On March 18, 2024, the instructor of the procedure agreed to carry out the following tests:

It is also agreed:

1. The complaints filed by XXXXXXXXXXXXXXXXXXXX on February 24, 2023, and by XXXXXXXXXXXX on March 9, 2023, as well as the information published in (...) on February 24, 2023, and its documentation, are reproduced for evidentiary purposes. As well as all documents obtained and generated by the General Subdirector of Data Inspection in the actions prior to the initiation of the present sanctioning procedure, in particular, the inspection report of April 28, 2023, and the preliminary investigation report of May 4, 2023.
2. Likewise, the allegations to the initiation agreement of the referenced sanctioning procedure are reproduced for evidentiary purposes.

2. Against the reported party, the following evidentiary actions were carried out:

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The GUARDIA CIVIL - TOLEDO COMMAND was required to provide the information or documentation requested below within a period of ten working days:

“Firstly, upon examining the content of the written allegations dated March 8, 2024, it is understood that the expressions “XXXXXXXXXXXXXXXXX” refer to the personal database named TOLETUM, which was referenced in both the inspection report dated April 28, 2023, and the preliminary investigation report dated May 4, 2023.

1. The inspection report dated April 28, 2023, indicated the following:

“Following the visit of the Data Protection Delegate to the Command on March 13, 2023 (...).

Clarify whether the personal database TOLETUM (...) is operational.

If it is operational, indicate how compliance with the principle of accuracy of the personal data contained in that database is guaranteed (given that it is fed with data from various databases: XXXX, XXXXXX, XXXXXXXXXXXX, etc., and, likewise, data is entered at the Toledo Command).

2. Clarify the situation as of April 28, 2023, XXXXXXXXXXXXXXXXXXXX in the personal database TOLETUM. (...).

Also, refer to the existence, if applicable, of (...).

3. On March 27, 2024, a written response was received from the Toledo Command regarding the evidence request dated March 18, 2024, indicating: (...).

SIXTH: On May 20, 2024, a resolution proposal was made, proposing:

“That the Director of the Spanish Agency for Data Protection declare that GUARDIA CIVIL - IAE.

TOLEDO COMMAND, with NIF S4516004A, has infringed:

- The provisions of Article 11 of LO 7/2021, an infringement classified under Article 59 a) of LO 7/2021.
- The provisions of Article 28 of LO 7/2021, an infringement classified under Article 59 f) of LO 7/2021.
- The provisions of Article 37 of LO 7/2021, an infringement classified under Article 59 f) of LO 7/2021.”

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SEVENTH: On June 4, 2024, a written response was received from the Command indicating that no allegations were made.

On May 29, 2024, the Office of the Data Protection Delegate of the Guardia Civil submitted a document stating that no allegations were made. It was also highlighted that in this file, communications from the AEPD had not been made through that Data Protection Delegate. Finally, it was pointed out the need to modify the name of the reported party, given that the acronym “IAE” referred to the Intervention of Arms and Explosives of the Toledo Command.

In light of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure.

PROVEN FACTS

FIRST: The Toledo Command of the Guardia Civil created a personal database named TOLETUM.

In the summary of conclusions of the preliminary investigation report dated May 4, 2023, it is stated:

“The Toledo Command of the Guardia Civil has created a database named TOLETUM, which includes the XXXXXXXXXXXX with the fundamental purpose of coordinating actions related to gender-based violence (...).

SECOND: The personal database TOLETUM was composed of (...):

(...).

This is reflected in section 3 of the inspection report dated April 28, 2023. It is also reflected in POINT

1 (statements made by representatives of the Guardia Civil in response to the questions posed by the inspectors) and POINT 2 (...) of the preliminary investigation report dated May 4, 2023.

In the aforementioned POINT 2 of the preliminary investigation report, as well as in the inspection report (page 12), it is indicated:

(...).

THIRD: (...) and became operational in February 2022.

In this regard, the preliminary investigation report dated May 4, 2023, indicates:

(...)

It became operational in February 2022. (...)" (the underlining is from the AEPD).

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This same information is reflected in the inspection report (pages 6 and 7).

FOURTH: (...). It became operational in March 2022.

The term (...).

The preliminary investigation report dated May 4, 2023, regarding that module, highlights:

(...)

(...)

It became operational in March 2022." (the underlining is from the AEPD).

This same information is reflected in the inspection report (pages 7 and 8).

FIFTH:

(...)

It became operational in February 2022." (the underlining is from the AEPD).

This same information is reflected in the inspection report (pages 8 and 9).

SIXTH: (...).

This is reflected in the summary of conclusions of the preliminary investigation report dated May 4, 2023:

"The Toledo Command of the Guardia Civil has created a database named TOLETUM, which includes the

(...).

SEVENTH: (...).

It became operational in February 2023.

This is reflected in the preliminary investigation report dated May 4, 2023:

(...).

It became operational in February 2023." (the underlining is from the AEPD).

This same information is reflected in the inspection report (page 9).

EIGHTH: The (...).

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In this regard, the preliminary investigation report dated May 4, 2023, highlights:

(...).

This same information is reflected in the inspection report (pages 2 and 3).

NINTH: The (...).

In this regard, the preliminary investigation report of May 4, 2023, indicates:

(...).

This same information is reflected in the inspection report (page 3).

TENTH: (...). It became operational in February 2023.

This is reflected in the preliminary investigation report of May 4, 2023:

(...).

It became operational in February 2023

(...).

This same information is reflected in the inspection report (page 9).

ELEVENTH: The personal database TOLETUM, created by the Toledo Command, contained personal data from applications, databases, or computer systems of the Ministry of the Interior (...).

Below are paragraphs extracted from the preliminary investigation report of May 4, 2023, organized

(...):

(...).

It became operational in February 2023.” (the underlining is from the AEPD).

(...).

This same information is reflected in the inspection report (pages 6 to 9).

TWELFTH: The personal database TOLETUM was developed entirely by personnel from the Toledo Command.

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In this regard, the preliminary investigation report dated May 4, 2023, highlights:

(...).

It has been developed entirely by personnel from the Toledo Command.” (the underlining is from the AEPD).

This same information is reflected in the inspection report (page 10).

THIRTEENTH: When designing the personal database TOLETUM, the personnel from the Toledo Command (...):

13.1 The (...) was designed by adapting the (...).

In this regard, the preliminary investigation report of May 4, 2023, indicates:

(...).

This same information is reflected in the inspection report (page 5).

13.2 The (...).

The preliminary investigation report of May 4, 2023, regarding this issue, highlights:

(...).

This same information is reflected in the inspection report (pages 8, 12, and 13).

FOURTEENTH: The personal database TOLETUM contained personal data of victims and aggressors of gender-based violence.

14.1.

(...).

In relation to this issue, the preliminary investigation report of May 4, 2023, indicates:

(...).

(...).

This same information is reflected in the inspection report (pages 4 and 5).

14.2. Other personal data,

(...)

:

In POINT 2 of said report (...).

This same information is reflected in the inspection report (page 13).

14.3.

(...):

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In relation to this personal data, the preliminary investigation report indicates the following:
(...).

This same information is reflected in the inspection report (page 7).

FIFTEENTH: The personal database TOLETUM contained personal data of civil guards from the Toledo Command.

In this regard, the preliminary investigation report of May 4, 2023, indicates:

“The civil guards are listed by their XXXXXXXXXXXX, with no names or surnames appearing in TOLETUM VIOGEN. However, names, surnames, and NIF of civil guards

(...)

were included from December 2022 until February 2023, at which point they were all replaced by XXXXXXXXXXXX.

Additionally, the inspection report (page 12) highlights:

“

□

It enters into (...).

SIXTEENTH: The personal database TOLETUM was operational until March 15, 2023, the date on which the process initiated on March 13, 2023, was completed.

This is reflected in the preliminary investigation report of May 4, 2023:

“- On 03/13/2023, instructions were given (...).

Additionally, in POINT 2 of said report (...), it highlights:

(...).

This same information is reflected in the inspection report (pages 5, 6, and 14).

Furthermore, in the report from the Toledo Command dated March 27, prepared in response to the evidence gathering, it indicates:

(...).

SEVENTEENTH: Following the publication of the news (...), the Toledo Command requested an audit from the Data Protection Delegate of the General Directorate of the Civil Guard.

Upon completion of the visit of said DPD to the Toledo Command, (...).

This is reflected in the preliminary investigation report of May 4, 2023:

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"Until the news was published in the magazine (...), the Toledo Command was not aware that its actions could supposedly be contrary to Data Protection regulations. (...)

Once the news was published, the officials of the Command requested an audit from the Data Protection unit of the General Directorate of the Civil Guard, (...).

Following the visit of the Data Protection Delegate to the Command, the following actions were taken (...).

This same information is reflected in the inspection report (page 6).

EIGHTEENTH: In October 2023, the Data Protection Delegate of the General Directorate of the Civil Guard, at the request of the Technical Services Headquarters of said General Directorate, prepared a report indicating the steps to follow when a unit, body, dependency, etc., of the Civil Guard deemed it necessary to use other means of processing (...).

In the written allegations to the initiation agreement of March 8, 2024, the steps to follow are indicated: (...).

In view of the above, when any unit, body, dependency, etc., considers it necessary to use other means of processing, particularly XXXXXXXXXXXX, the following steps should be followed:

1. Identify the processing or processes that contain the personal data to be processed, for which it must refer to the Inventory of Processing Activities of the DGGC. (...)
2. Prepare a document describing:
(...).
3. Send said document to the data processing managers requesting authorization to initiate the procedure, with a copy of the same to this DPD for supervision and advice on the procedure, without submitting the request to the IT Service.
4. Refrain from implementing any management tool until written authorization is received from the Data Processing Manager, which will establish the conditions of use.
5. The Data Processing Manager must inform this DPD of the authorizations granted by sending a copy of the same."

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NINETEENTH: The XXXXXXXXXXXXX established, once the report from the DPD of the General Directorate of the Civil Guard dated October 3, 2023 was received, the procedure to follow when any request was received (...).

In the written allegations to the initiation agreement of March 8, 2024, the content of said procedure is reflected:

"Among the competencies assigned to the Data Protection Delegate by Regulation (EU) 2016/679, Organic Laws 3/2018 and 7/2021 is to supervise compliance with said regulations and to provide advice for compliance with current legislation regarding Personal Data Protection.

In line with the above, the DPD has been requested to report on the installation and use of the XXXXXXXXXXXXX on official computers, the content of which is reproduced below.

Once the indicated regulations and report have been analyzed, this Headquarters establishes the procedure to follow when any request for installation and authorization for the use of the XXXXXXXXXXXXX is received. This entails that prior to its authorization, it must be ensured that all requirements imposed by the legislative framework regulating Personal Data Protection are met.

Therefore, the procedure will observe the following points:

(...).

This is communicated for knowledge and the indicated effects."

TWENTIETH: In creating the personal database TOLETUM and putting it into operation, the Toledo Command

- Did not conduct a risk analysis.
- Did not request a report from the Data Protection Delegate of the General Directorate of the Civil Guard.
- Did not inform the General Directorate of the Civil Guard.

In this regard, it is reflected in the preliminary investigation report dated May 4, 2023:

(...), they considered that the TOLETUM tool as designed did not contain personal data, so no report was requested from the Data Protection Delegate, nor was a Risk Analysis conducted regarding the processing of the Data, nor was the General Directorate of the Civil Guard, responsible for the Processing, informed about the development and implementation of the tool, and therefore it is not recorded in the Register of Processing Activities of the Responsible." (the underlining is by the AEPD). This same information is reflected in the inspection report (page 4).

TWENTY-FIRST: In the personal database TOLETUM, created by the Toledo Command, there was no data deletion policy (...).

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In relation to this matter, the preliminary investigation report dated May 4, 2023, highlights:

"There is no data cancellation policy in TOLETUM as such. (...)

This same information is reflected in the inspection report (page 11).

Furthermore, the conclusions of said report indicate:

"There is no data cancellation policy in TOLETUM. Although a data point is canceled (...).

TWENTY-SECOND: When the personal database TOLETUM, created by the Toledo Command, was operational, it did not distinguish (...). Those who accessed the aforementioned database, (...).

In the document dated March 27, 2024, prepared by the Toledo Command in response to the evidence practice, it is highlighted:

(...).

In this same regard, the preliminary investigation report dated May 4, 2023, indicates:

(...).

This same information is reflected in the inspection report (pages 10 and 11).

TWENTY-THIRD: In the personal database TOLETUM, created by the Toledo Command, (...).

The Toledo Command acknowledges that in TOLETUM (...).

In this sense; in the document dated March 27, 2024, prepared by the Toledo Command in response to the evidence practice, it is indicated:

"On the other hand, (...).

This (...) is also highlighted in the conclusions of the preliminary investigation report dated May 4, 2023:

(...).

In this regard, the preliminary investigation report dated May 4, 2023, and the inspection report (page 11), indicate:

(...).

The Toledo Command has stated that they intended to strengthen the security and control of the personal database TOLETUM. This is indicated in the preliminary investigation report dated May 4, 2023, and the inspection report (page 10):

(...).

LEGAL GROUNDS

I

Competence

In accordance with the functions attributed to data protection authorities by Article 49 of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions (hereinafter, LO 7/2021), as established in Article 48 of the aforementioned LO 7/2021 and according to the provisions of Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD establishes that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, Article 52 "Applicable regime to procedures processed before data protection authorities" of LO 7/2021 establishes that:

"1. In the event that the interested parties consider that the processing of personal data has infringed the provisions of this Organic Law or that their request to exercise the rights recognized in Articles 21, 22, and 23 has not been addressed, they shall have the right to file a complaint with the data protection authority.

2. Such complaints shall be processed by the competent data protection authority in accordance with the procedure established in Title VIII of Organic Law 3/2018, of December 5, and, where applicable, by the legislation of the Autonomous Communities that is applicable. The general rules on administrative procedures and the legal regime of the public sector shall apply subsidiarily."

II

Allegations to the initiation agreement and documents received in response to the resolution proposal

1. Allegations to the initiation agreement:

In the document of allegations to the initiation agreement dated March 8, 2023, reflected in a summarized form in the fourth antecedent of this resolution proposal, no...

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the facts reflected in the inspection report of April 28, 2023, (...), nor in the preliminary investigation report of May 4, 2023.

In this regard, it is indicated:

“From the above, it follows that, admitting the facts reported by the Inspectors in their report, the General Directorate of the Civil Guard has adopted the measures that, in its supervisory and advisory role for compliance with data protection regulations, this Data Protection Delegate proposed.” (the underlining is from the AEPD).

In the aforementioned allegations, a series of subsequent actions are reflected in relation to the facts that have motivated the processing of this sanctioning file (request dated October 2, 2023, for a report to the DPD of the General Directorate of the Civil Guard by the Technical Services Headquarters, the report prepared by said DPD dated October 3, 2023, and the subsequent decision of (...) of the General Directorate of the Civil Guard, adopted in view of the requested report).

2. Written responses received to the proposed resolution

On June 4, 2024, a letter was received from the Toledo Command stating that no allegations are presented against the proposed resolution.

On May 29, 2024, a letter was received from the Office of the Data Protection Delegate of the Civil Guard highlighting that no allegations are made.

It was also noted that there was an error regarding the designation of the reported party, which has been corrected. Furthermore, it was indicated that, until now, communications with the AEPD had been carried out through the Data Protection Delegate of the Civil Guard, which was not followed in this sanctioning file.

III

Applicable legal regime

Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) establishes in its Article 2 a series of personal data processing activities to which it does not apply. Among these treatments, section d) includes the processing of personal data “by competent authorities for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses, or for the execution of criminal sanctions, including the protection against threats to public security and their prevention.”

For processing of this nature, the current Organic Law 7/2021, of May 26, applies, through which Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses or for the execution of criminal sanctions, and on the free movement of such data, is transposed into our legal system.

In this regard, this organic law aims, according to its first article, “to establish the rules relating to the protection of natural persons with regard to the processing of personal data by competent authorities, for the purposes of preventing, detecting, investigating, and prosecuting criminal offenses or for the execution of criminal sanctions, including the protection and prevention against threats to public security.”

Furthermore, Article 2, in delimiting its scope of application, establishes that this regulation will apply “to the total or partially automated processing of personal data, as well as to the non-automated processing of personal data contained or intended to be included in a file, carried out by competent authorities, for the purposes of preventing, detecting, investigating, and prosecuting criminal offenses and for the execution of criminal sanctions, including the protection and prevention against threats to public security.”

IV

Obligation breached under Article 11 of LO 7/2021

Article 11 of LO 7/2021, which regulates the lawfulness of processing, provides the following:

Article 11. Lawfulness of processing.

1. Processing shall only be lawful to the extent that it is necessary for the purposes specified in Article 1 and is carried out by a competent authority in the exercise of its functions.
2. Any law regulating the processing of personal data for the purposes included within the scope of this Organic Law must indicate, at a minimum, the objectives of the processing, the personal data that will be subject to it, and the purposes of the processing.

The Secretary of State for Security, under which both the General Directorate of the Civil Guard and the General Directorate of the Police fall, is entrusted with a series of functions related to the planning, coordination, and supervision of the determination of the technical requirements of databases in the field of security.

In this regard, Article 2 of Royal Decree 734/2020, of August 4, which develops the basic organizational structure of the Ministry of the Interior (in the version in force at the time the personal database TOLETUM was created), attributed to the General Subdirectorate of Information Systems and Communications for the

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Security, which depends on said State Secretariat, has a series of functions, among which the following stand out:

“2. Standardize and homogenize information and communication systems, coding, and data structures in the field of security.

(...)”

7. Coordinate, develop, and implement databases, information systems, and communication systems for joint or shared use by the State Security Forces and Corps (...)”

Article 2 of Royal Decree 207/2024, of February 27, which develops the basic organizational structure of the Ministry of the Interior, currently in force, regulates the functions of the General Subdirectorate of Information and Communication Systems, among which the functions reflected in the previous paragraph continue to be found.

On the other hand, Article 4.8 c) of Royal Decree 734/2020, of August 4, (in its version in force at the time the personal database TOLETUM was created) regulated the functions, in the field of the General Directorate of the Civil Guard, of the Technical Services Headquarters “which is responsible for the management, control, maintenance, and technological development of the computer systems, telecommunications, and special equipment assigned to the Civil Guard, in addition to activities related to the information security of the Corps in the field of the aforementioned ICT.” This reference appears in the same terms in Royal Decree 207/2024, of February 27, currently in force.

As indicated in the report of the DPD of the Civil Guard dated October 3, 2023, the content of which is reproduced in the written allegations to the initiation agreement, “by the Ministry of the Interior, through Order 424/2019, the principles that must govern the processing of personal data in the various units of the department, among which is the DGGC” [General Directorate of the Civil Guard], are determined.

Furthermore, in the aforementioned report of the DPD of the Civil Guard, it is highlighted that “The

General Directorate of the Civil Guard, in compliance with the provisions of Article 31.2 of Organic Law 3/2018 and Article 21 of Organic Law 7/2021, has made the Inventory of Processing Activities electronically accessible, where all the data processing that the Institution has declared is listed, specifying the Responsible for each of them, legitimization, etc.”

In addition to what has already been stated, it should be added that the report of the DPD of the Civil Guard of October 3, 2023 indicates; regarding the data controller (competent authority in the case of police data), the following:

“Both Regulation (EU) 2016/679 and Organic Law 7/2021, which transposes Directive (EU) 2016/680, define the Data Controller as: the natural or legal person, public authority, service, or other body (competent authority in the case of police data) that, alone or jointly with others, determines the purposes and means of the processing; therefore, it is up to them and no one else to implement the organizational procedures and the technological or non-technological means that must be used in any of the processing to which personal data are subjected.” (the underlining is from the AEPD).

The report of the DPD of the Civil Guard of October 3, 2023 also highlights:

“Generally, the processing of personal data contained in the various treatments is carried out (...).

In light of the above, when any unit, body, dependency, etc., considers it necessary to use other processing means, especially (...), it should follow the following steps:

1. Identify the treatment or treatments that contain the personal data you want to process, for which you must refer to the Inventory of Processing Activities of the DGGC. (...)

2. Prepare a document describing:

(...).

3. Send that document to the data controllers requesting authorization to initiate the procedure with a copy of it to this DPD to supervise and advise the procedure, not submitting the request to the IT Service.

4. Refrain from implementing any management tool until receiving written authorization from the Data Controller, in which the conditions of use will be established.

5. The Data Controller must inform this DPD of the authorizations granted by sending a copy of the same.”

In the case examined in this file, the Toledo Command created a database that contained data related to the prevention and execution of sanctions related to gender-based violence, in which the steps described by the DPD of the Civil Guard in its report of October 3, 2023 (report prepared after the creation of the TOLETUM database) were not followed.

As reflected in the eleventh proven fact, said database contained data from different applications, personal databases, and computer systems of the Ministry of the Interior (...), drawing information from them.

The aforementioned personal database was developed:

- Entirely by personnel from the Toledo Command (twelfth proven fact).

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- Without informing the General Directorate of the Civil Guard (proven fact twentieth).

- Without requesting a report from the Data Protection Delegate of the Civil Guard (proven fact twentieth).

In this database, personal data of victims and aggressors of gender-based violence were recorded (proven fact fourteenth), as well as data from civil guards of the Toledo Command who were assigned functions related to the prevention and control of the enforcement of sanctions concerning gender-based violence offenses (proven fact fifteenth).

In this regard, the report on preliminary investigative actions, reproducing the content reflected in the inspection report, states:

1. (...):

(...).

“- On 13/02/2023, (...), the following was reported: “right now we are entering (...).

The changes made concerning the data of victims of gender-based violence and the aggressors are reflected both in the inspection report and in the preliminary investigative actions report.

In this sense, the preliminary investigative actions report details (...):

(...).

The personal data has been pseudonymized. However, the responsible party could identify the holders of such data without any effort, simply by accessing the system XXXXXX or XXXX. Therefore, such data continues to be personal data.

2. Other personal data, (...):

In POINT 2 of that report (...), it is indicated:

(...).

This same information is reflected in the inspection report (page 13).

3. (...).

In relation to this issue, the report on preliminary investigative actions states the following:

(...).

4. Identification data of the civil guards:

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The report on preliminary investigative actions indicates:

(...).

Just as in the case of the data of victims of gender-based violence and aggressors, the personal data of the civil guards has been pseudonymized. However, the responsible party could identify the holders of such data without any effort, simply by accessing internal applications of the Civil Guard. Therefore, such data continues to be personal data.

It is considered that the known facts constitute an infringement, attributable to the GUARDIA CIVIL - TOLEDO COMMAND, for violation of Article 11 of LO 7/2021.

IV

Classification and qualification of the infringement of Article 11 of LO 7/2021

LO 7/2021 provides a framework of infringements and sanctions in the case of non-compliance with the obligations set forth in its articles, classifying them as minor, serious, and very serious.

Article 59, section a) qualifies as a serious infringement:

“a) The processing of personal data when the principles of Article 6 or the conditions for lawful processing of Article 11 are violated, provided that it does not constitute a very serious infringement.”

For the purposes of the statute of limitations, the alleged infringement prescribes after two years, in accordance with the provisions of Article 63 LO 7/2021, which establishes this period for those infringements classified as serious, as is the case here.

V

Unfulfilled obligation of Article 28 of LO 7/2021

Article 28 of LO 7/2021, which regulates data protection by design and by default, provides as follows:

“Article 28. Data protection by design and by default.

1. At the time of determining the means for processing, as well as at the time of the actual processing, appropriate technical and organizational measures must be applied in accordance with the state of the art and the cost of implementation, the nature, scope, context, purposes of the processing, and the risks to the rights and freedoms of individuals. The objective will be to effectively safeguard the principles of data protection while integrating the necessary guarantees into the processing. Among these technical measures, pseudonymization of personal data may be adopted to contribute to the

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application of the principles established in this Organic Law, in particular, the principle of data minimization.

2. Furthermore, the technical and organizational measures must ensure that, by default, only personal data that is necessary for each of the specific purposes of processing is subject to processing. This obligation will apply to the amount of personal data collected, the extent of its processing, its retention period, and its accessibility. Such measures will ensure that, by default, personal data is not accessible to an indeterminate number of persons without human intervention.”

The design of TOLETUM did not effectively guarantee compliance with the principle of accuracy (Article 6.1 d) of LO 7/2021).

There was no data deletion policy in the TOLETUM personal database (proven fact twenty-first). The data persisted in TOLETUM, despite being deleted in XXXXXX or in XXXX.

In relation to this issue, the preliminary investigation report highlights (the inspection report also reflects this content):

“There is no data deletion policy in TOLETUM as such. However, if a data point is deleted in (...), with the references that exist in TOLETUM, it would not be possible to obtain identifying data, as it would not be possible to identify the person (...).

Furthermore, the conclusions of said report indicate:

“There is no data deletion policy in TOLETUM. (...).

Inaccuracies may also occur if the information were updated in VioGén and not in the TOLETUM database. For example, (...).

It is considered that the known facts constitute an infringement, attributable to the GUARDIA CIVIL - COMANDANCIA TOLEDO, for violation of Article 28 of LO 7/2021.

VI

Classification and qualification of the infringement of Article 28 of LO 7/2021

LO 7/2021 provides a framework of infringements and sanctions in the event of non-compliance with the obligations set forth in its articles, classifying them as minor, serious, and very serious.

Article 59, paragraph f) qualifies as a serious infringement:

“f) The absence of adoption of those technical and organizational measures that are appropriate to effectively apply the principles of data protection, including the necessary measures from the design and by default, as well as to integrate the necessary guarantees in the processing.”

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For the purposes of the statute of limitations, the alleged infringement prescribes after two years, in accordance with the provisions of Article 63 LO 7/2021, which establishes this period for those infringements classified as serious, as is the case here.

VII

Unfulfilled obligation of Article 37 of LO 7/2021

Article 37 of LO 7/2021, which regulates the security of processing, establishes that:

“Article 37. Security of processing.

1. The controller and the processor, taking into account the state of the art and the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the levels of risk to the rights and freedoms of natural persons, shall apply appropriate technical and organizational measures to ensure an adequate level of security, especially regarding the processing of the categories of personal data referred to in Article 13. In particular, they must apply to the processing of personal data the measures included in the National Security Scheme.

2. Regarding automated processing, the controller or processor, following a risk assessment, shall implement control measures for the following purposes:

- a) In access control to equipment, deny access to unauthorized persons to the equipment used for processing.
- b) In control of data media, prevent them from being read, copied, modified, or deleted by unauthorized persons.
- c) In storage control, prevent unauthorized personal data from being introduced, or that it may be inspected, modified, or deleted without authorization.
- d) In user control, prevent automated processing systems from being used by unauthorized persons through data transmission facilities.
- e) In access control to data, ensure that authorized persons to use an automated processing system can only access the personal data for which they have been authorized.
- f) In transmission control, ensure that it is possible to verify and establish to which bodies personal data has been transmitted or may be transmitted, or to whose disposal personal data may be placed through data communication equipment.

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- g) In the control of data entry, ensure that it can be verified and confirmed, afterwards, which personal data has been entered into the automated processing systems, at what time, and by whom.
- h) In the control of transportation, prevent personal data from being read, copied, modified, or deleted without authorization during the transfer of personal data or during the transportation of data carriers.
- i) In the control of restoration, ensure that the installed systems can be restored in case of interruption.
- j) In the control of reliability and integrity, ensure that the system functions do not present defects, that operational errors are reported, and that the stored personal data is not degraded due to system malfunctions.

In the case examined, failures in security measures are noted:

1. Prior to its creation, a risk analysis for the rights and freedoms of individuals was not conducted in order to apply appropriate technical and organizational measures to ensure an adequate level of security. A report was also not requested from the Data Protection Officer at any time (proven fact twentieth).

In this regard, the report of preliminary investigation actions, reflecting the content of the inspection report, highlights:

(...), they considered that the TOLETUM tool as designed did not contain personal data, which is why no report was requested from the Data Protection Officer, nor was a Risk Analysis conducted regarding the processing of the Data, nor was the General Directorate of the Civil Guard, Responsible for the Treatments, informed of the development and implementation of the tool, and therefore it does not appear in the Responsible's Register of Processing Activities.” (the underlining is from the AEPD).

2. Article 37.2 g) of LO 7/2021 provides: “g) In the control of data entry, ensure that it can be verified and confirmed, afterwards, which personal data has been entered into the automated processing systems, at what time, and by whom.”

However, in TOLETUM, it was not possible to carry out such control.

2.1 On one hand, (...), as reflected in the proven fact twenty-second.

This is reflected both in the inspection report of April 28, 2023, and in the report of preliminary investigation actions of May 4, 2023.

In the latter, it is indicated:

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(...).

This characteristic of TOLETUM (...), proven fact twenty-second) has been corroborated in the practice of evidence.

In the document of March 27, 2024, prepared by the Toledo Command in response to the practice of evidence, it is highlighted:

(...).

2.2. On the other hand, in TOLETUM (...).

In this regard, the report of preliminary investigation actions of May 4, 2023, indicates:

(...).

In this same sense, in the conclusions of the report of preliminary investigation actions, it is indicated: (...).

The Toledo Command intended to resolve this security flaw in the future, as highlighted in the report of preliminary investigation actions and in the inspection report:

(...).

The Toledo Command itself acknowledges that in TOLETUM (...).

In this regard, in the document of March 27, 2024, prepared by the Toledo Command in response to the practice of evidence, it is indicated:

“On the other hand, (...).

It is considered that the known facts constitute an infringement, attributable to the GUARDIA CIVIL - TOLEDO COMMAND, for violation of Article 37 of LO 7/2021.

VIII

Classification and qualification of the infringement of Article 37 of LO 7/2021

LO 7/2021 provides a framework of infringements and sanctions in the event of non-compliance with the obligations set forth in its articles, classifying them as minor, serious, and very serious.

Article 59, section f) qualifies as a serious infringement:

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“f) The failure to adopt those technical and organizational measures that are appropriate to effectively apply the principles of data protection, including the necessary measures from the design stage and by default, as well as to integrate the necessary guarantees in the processing.”

For the purposes of the statute of limitations, the alleged infringement is subject to a two-year limitation period, in accordance with the provisions of Article 63 of Organic Law 7/2021, which establishes this period for those infringements classified as serious, as is the case here.

IX

Sanctions to be imposed for the committed infringements

The first paragraph of Article 62 of Organic Law 7/2021 regarding sanctions states the following:

“In the event that the responsible party is one of those listed in Article 77.1 of Organic Law 3/2018, of December 5, the sanctions will be imposed and the measures established in that article will be adopted.”

The aforementioned Article 77.1 of the LOPDGDD establishes that:

“The regime established in this article shall apply to the processing for which they are responsible or in charge:

a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.

b) The judicial bodies.

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

d) The public bodies and entities of public law linked to or dependent on the Public Administrations.

e) The independent administrative authorities.

f) The Bank of Spain.

- g) The public law corporations when the purposes of the processing relate to the exercise of public law powers.
- h) The public sector foundations.
- i) The Public Universities.
- j) The consortiums.
- k) The parliamentary groups of the General Courts and the legislative assemblies of the autonomous communities, as well as the political groups of the Local Corporations.

2. When the responsible parties or those in charge listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

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The resolution shall be notified to the responsible party or data processor, to the body to which it hierarchically depends, if applicable, and to the affected parties who had the status of interested parties, if applicable.

(...)

4. The resolutions relating to the measures and actions referred to in the previous paragraphs must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities.

(...)"

In light of the facts presented in this resolution, it is considered appropriate to impose three sanctions on the Toledo Command for:

- Violation of the provisions of Article 11 of Organic Law 7/2021, an infringement classified in Article 59 a) of Organic Law 7/2021.
- Violation of the provisions of Article 28 of Organic Law 7/2021, an infringement classified in Article 59 f) of Organic Law 7/2021.
- Violation of the provisions of Article 37 of Organic Law 7/2021, an infringement classified in Article 59 f) of Organic Law 7/2021.

The sanction to be imposed for each of these three infringements is the declaration of infringement. Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO DECLARE that GUARDIA CIVIL - COMANDANCIA TOLEDO, with NIF S4516004A, has infringed:

- The provisions of Article 11 of Organic Law 7/2021, an infringement classified in Article 59 a) of Organic Law 7/2021.
- The provisions of Article 28 of Organic Law 7/2021, an infringement classified in Article 59 f) of Organic Law 7/2021.
- The provisions of Article 37 of Organic Law 7/2021, an infringement classified in Article 59 f) of Organic Law 7/2021.

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SECOND: NOTIFY this resolution to the GUARDIA CIVIL - COMMAND OF TOLEDO.

THIRD: COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

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